

Directive Principles of State Policy (Part IV Article 36-51)

The phrase 'Directive Principles of State Policy' denotes the **ideals that the State should keep in mind while formulating policies and enacting laws**. These are Ideals for the State in policy formulation and law enactment.

- **Significance:** Described by **Dr. B.R. Ambedkar** a 'novel feature' of the Indian Constitution, embodying its philosophy and serving as its soul.
- **Origins:** Inspired by the **Irish Constitution**, which itself was influenced by the **Spanish Constitution**; resembles the 'Instrument of Instructions' from the **Government of India Act, 1935**.
- **Objective:** Aims for 'Socio-economic democracy' (UPSC 2015), complementing **Political democracy**.
- **Legal Exceptions:** Laws under Articles 39(b) and (c) cannot be declared unconstitutional based on Articles 14 and 19.
- **Key Insights:**
 - **Granville Austin:** DPSP + Fundamental Rights (FR) = **Conscience of the Constitution**.
 - **Article 37:** DPSP principles are fundamental for governance. [UPSC 2013]
 - **Minerva Mills Case (1980):** Emphasises harmony between FR and DPSP as vital to the Constitution's basic structure.

FEATURES OF DIRECTIVE PRINCIPLES OF STATE POLICY

- **Comprehensive Programme:** Covers **economic, social, and political** aspects for a modern democratic state. The 'State': Includes **legislative and executive organs** of the central and state governments, all local authorities and all other public authorities in the country.
- **Moral Obligation:** Although **non-justiciable** (not legally enforceable), their implementation relies on **public opinion**. [UPSC 2020, 2015]
- Directive Principles of State Policy constitute does not put limitations upon legislative & executive function [UPSC 2017]
- **Constitutional Guidelines:** Serve as **recommendations** for the **State** (central, state, and local authorities) in legislative, executive, and administrative matters. [UPSC 2020]

- **Socio-economic Democracy:** Promote **positive** social and economic rights, unlike **Fundamental Rights** (negative in nature). [UPSC 2015]
- **Supplement Fundamental Rights:** Fill gaps in **Part III** of the Constitution by addressing social and economic issues.
- **Welfare State:** Embodies the principles of a **Welfare State**, aiming for **justice, liberty, equality, and fraternity**. [UPSC 2020, 2015]
- They are fundamental for the governance of the country. [UPSC 2013]
- **Constitutional Advisor:** **B.N. Rau** proposed dividing rights into **justiciable** and **non-justiciable**, a recommendation accepted by the Drafting Committee.
- **Judicial Role:** Helps courts assess the **constitutional validity** of laws concerning **Articles 14 & 19**.

CLASSIFICATION OF DIRECTIVE PRINCIPLES OF STATE POLICY

The **Constitution does not specify the classification** of DPSPs. On the basis of content, these are classified into Socialist, Gandhian and Liberal-intellectual.

- A. **SOCIALIST:** Reflects ideology of Socialism, lays down the framework of a democratic socialist state, aims at providing **social and economic justice**, and sets the path towards a **welfare state**. [UPSC 2015, 2020]
 1. **Article 38:** Promote **social, economic, and political justice**; minimise **income and opportunity inequalities** (44th Amendment).
 2. **Article 39:** State policies to ensure:
 - a. **Livelihood** equality for men and women.
 - b. Distribution of **resources** for the common good.
 - c. Prevention of **wealth concentration**. [UPSC 2021]
 - d. **Equal pay** for equal work.
 - e. **Health and safety** of workers and children.
 - f. **Child development** and protection (42nd Amendment).

3. **Article 39A:** Promote **equal justice** and provide **free legal aid** (42nd Amendment).
Example: Legal Services Authorities Act, 1987: Section 12: Free legal services to various sections of the society.
 4. **Article 41:** Ensure the **right to work, education**, and public assistance.
 5. **Article 42:** Provide **humane work conditions** and **maternity relief**.
 6. **Article 43:** Secure **living wages** and decent living standards for workers.
 7. **Article 43A:** Workers' **participation in industry management** (42nd Amendment).
 8. **Article 47:** Improve **nutrition, living standards**, and public health.
- B. GANDHIAN:** Based on Gandhian Ideology. Represent the **programme of reconstruction** enunciated by Gandhi during the National Movement.
- **Article 40:** Establish **village Panchayats** for self-government. [UPSC 2012]
 - **73rd CAA, 1992:** Constitutional recognition (Part IX, Schedule 11).
 - **Article 43:** Promote **cottage industries** in rural areas. [UPSC 2012]
 - **Article 43B:** Encourage democratic management of Co-operative Societies (97th Amendment, 2011).
 - **Article 46:** Protect educational and economic interests of SCs, STs, and weaker sections.
 - **Article 47:** Ban intoxicants except for **medicinal use**.
 - **Article 48:** Prohibit slaughter of cows and improve their breeds.
- C. LIBERAL INTELLECTUAL:** To represent the ideology of liberalism.
- **Article 44:** Establishes a **Uniform Civil Code** for national integration.
 - **Shah Bano Case (1985):** Highlights the need to resolve conflicting legal loyalties.
 - **Article 45:** Ensures **early childhood education** for children up to age 6 (86th CAA, 2002). [UPSC 2012]
 - **Article 48:** Promotes **modern agriculture and animal husbandry**.
 - **Article 48A:** Protects the **environment** and wildlife (42nd CAA, 1976).
 - **Article 49:** Safeguards **historic monuments** of national importance.
 - **Article 50:** Separates the **Judiciary from the Executive**. [UPSC 2020]
 - **Article 51:** Fosters **international peace** and respect for laws. [UPSC 2014/2015]

NEW DIRECTIVE PRINCIPLES

Amendment	Description
42nd CAA 1976	Added Article 39(f), Article 39A, Article 43A, Article 48A . [UPSC 2017] The 42nd CAA (1976) shifted the five subjects from the State list to the Concurrent list – Education, Forests, Weights and Measures, Protection of Wild Animals and Birds, and Administration of Justice .
44th CAA 1978	Added Article 38(2) - To minimise inequalities in income, status, facilities and opportunities.
86th CAA 2002	Added Article 45 : The amendment changed the subject - matter of Article 45 and elementary education made as FR under Article 21A.
97th CAA 2011	Added Article 43B : to promote formation, functioning and management of Co-operative Societies .

DIRECTIVES OUTSIDE PART IV

Article 335 Part XVI	Claims of SCs & STs to services.
Article 350A Part XVII	Instruction in mother tongue.
Article 351 Part XVII	Development of Hindi Language.

DIFFERENCE BETWEEN FUNDAMENTAL RIGHTS, FUNDAMENTAL DUTIES AND DPSPs

Aspect	Fundamental Rights (FRs)	Fundamental Duties	Directive Principles of State Policy
Definition	Rights guaranteed to individuals.	Responsibilities of citizens.	Guidelines for state governance.
Articles	Articles 12-35	Article 51 (A)	Articles 36-51
Nature	Justiciable; enforceable in court.	Non-justiciable; not enforceable in court.	Non-justiciable; guide state policy.
Purpose	Establish political democracy.	Promote civic responsibility.	Establish social and economic democracy.
Enforcement	Automatically enforced; courts can invalidate laws (e.g., Articles 32, 226).	Voluntary compliance requires special laws.	Require legislation; not automatically enforced. [UPSC 2015]
Sanctions	Legal sanctions; individual welfare focus.	No legal sanctions; mere duties.	Moral sanctions; community welfare focus.
Amendment	Can be amended but not the basic structure (Article 368).	Can be modified by Parliament.	Can be amended to reflect societal needs.
Origin	Borrowed from the USA.	Soviet Constitution	Irish Constitution.
State's Role	Restricts state action.	N/A	Directs state action.
Judicial Review	Laws violating FRs can be declared unconstitutional	Not subject to judicial review.	Courts cannot declare laws unconstitutional.

Note: Rights and duties are correlated.

[UPSC 2017]

CONFLICT BETWEEN FUNDAMENTAL RIGHTS AND DPSP

- **Champakam Dorairajan Case (1951):** FRs prevail over DPSPs. FRs can be amended by **Parliament** through constitutional amendments.
- **Golaknath Case (1967):** Parliament cannot remove any **FR** (sacrosanct). **FRs** cannot be amended for implementing **DPSPs**.
- **24th Amendment (1971):** Parliament can remove **FRs** via constitutional amendment.
 - Inserted **Article 31C**: Laws for **Article 39(b)** and **39(c)** not void if they violate **Article 14** and **19**; non-justiciable.
 - Such laws **cannot be questioned** in a court of law.
- **Kesavananda Bharati Case (1973):** Invalidated the second provision of **Article 31C**. And established **judicial review** as a basic structure.
- **42nd Amendment (1976):** Laws for **DPSPs** are **not** void despite violating **Article 14** and **19**. **DPSPs** given primacy over **Articles 14** and **19**.
- **Minerva Mills Case (1980):** Invalidated **DPSP** primacy over **FR**. It emphasised the balance between **FR** and **DPSP**.
- **Present Position:** **FRs** hold supremacy over **DPSPs**. **Parliament** can amend **FRs** for **DPSP** implementation without harming the basic structure.

